

23NWCV00536 23NWCV00536

County: los-angeles

Division: Civil Law and Motion

Department: L

Hearing date: 2026-07-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CL%2C07%2F28%2F2026

Source SHA-256: 5b71b0c0d832b034f706ca400a1f14a34537030a192ee6e28efc19b19c189c64

Case Number: 23NWCV00536 Hearing Date: July 28, 2026 Dept: L

LESLIE BRIANNA PEREZ vs ABC ADULT SCHOOL

CASE NO.: 23NWCV00536

HEARING: July 28, 2026 @ 9:30

a.m.

#12

REVISED TENTATIVE
ORDER

Plaintiff Leslie Brianna

Perez's Motion to Compel the Defendant ABC Unified School District and its
Employees to Appear for and Produce Documents at Time of Deposition is GRANTED.

Plaintiff is awarded \$5,000.00
in sanctions, payable within 60 days.

Plaintiff to give notice.

Background

This is a premises liability
action regarding an incident that occurred on January 3, 2022 at premises
located at 20122 Cabrillo Lane, Cerritos, CA ("Subject Premises"). On February
17, 2023, Plaintiff Leslie Brianna Perez ("Plaintiff") filed this action
against Defendant ABC Unified School District ("Defendants") and Does 1 to 100.

The Complaint alleges that the door of a restroom stall fell on Plaintiff's body, causing injuries. The Complaint alleges two causes of action for 1) General Negligence, and 2) Premises Liability.

On multiple occasions, Plaintiff noticed the depositions of Defendant's Person Most Knowledgeable (PMK) and employees, Regina Somers, Jacob Lanes, Brian Copa, Kathy Evans, and Arabella Garcia (hereinafter, "Employees").

In January 2026, Plaintiff took certificates of non-appearance as to each deposition.

Plaintiff now moves to compel the depositions of Defendant's PMK and Employees.

Legal Standard

Under Code of Civil Procedure section 2025.450, subdivision (a), a party may move to compel a deponent's attendance and production for inspection of documents if after serving the deposition notice the responding party fails to serve valid objections and fails to appear for the deposition or produce any document described in the deposition notice. A motion under Code of Civil Procedure section 2025.450 subd. (a) must (1) provide specific facts showing good cause justifying the production for inspection of any document and (2) be accompanied by a meet and confer declaration. (Code Civ. Proc., § 2025.450, subd. (b).)

Meet and Confer

"[W]hen the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, [the motion shall be accompanied] by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc. § 2025.450 subd. (b)(2).)

Plaintiff's meet and confer efforts are detailed in the next section. The Court finds the meet and confer requirement has been met.

Discussion

On July 10, 2023, Plaintiff

noticed the deposition of Defendant's PMK, setting the deposition for August 22, 2023. However, the deposition was taken off-calendar because Defendant's discovery responses had not yet been received. (Khorshidi Decl., ¶ 5.)

Plaintiff's attempts to notice

the deposition of Defendant's PMK and Employees are summarized as follows:

- On

October 24, 2024, Plaintiff served the second notice of Defendant's PMK deposition, and the initial notices of the Employees' depositions. The depositions were to occur in late November 2024. On November 20, 2024, Defendant served objections, arguing that the depositions were unilaterally set. (Khorshidi Decl., ¶ 6.)

- On

May 21, 2025, Plaintiff served the third notice of Defendant's PMK deposition, and the second notices of the Employees' depositions. The depositions were to occur in late July and early August 25, 2025. On July 28, 2025, Defendant served objections, arguing that the depositions were unilaterally set. (Khorshidi Decl., ¶ 7.)

- On

September 3, 2025, Plaintiff served the fourth notice of Defendant's PMK deposition, and the third notices of the Employees' depositions. The depositions were to occur in mid-November 2025. On November 10, 2025, Defendant served objections, arguing that the depositions were unilaterally set and Defense counsel was unavailable due to trial. (Khorshidi Decl., ¶ 8.)

- Most

recently, on December 22, 2025, Plaintiff served the fifth notice of Defendant's PMK deposition, which was to occur on January 16, 2026, and the fourth notices of the Employees' depositions, which were to occur on January 20-21, 2026. On January 13, 2026, Defendant served objections, stating that Defense counsel was unavailable due to trial. (Khorshidi Decl., ¶¶ 9-10, Exhs. D-E.)

Plaintiff took certificates of

non-appearance as to the January 16, 2026 deposition of Defendant's PMK and as

to the January 20-21, 2026 depositions of the Employees. (Khorshidi Decl., ¶ 11, Exh. F.)

Following the nonappearances, the parties tentatively agreed to continue trial based on the outstanding depositions; however, such agreement fell through. (Khorshidi Decl., ¶¶ 13-15, Exhs. H-J.) Plaintiff filed this Motion on February 11, 2026.

In opposition, Defendant argues that it has never refused to produce a single witness. Defendant argues that its counsel's office has diligently tried to offer alternative dates for the deposition based on the witnesses' schedules—however, Plaintiff continued to unilaterally serve deposition notices before confirming the dates worked for Defendant and the witnesses. (Doumanian Decl., ¶¶ 4-10, Exhs. A-B.) Defendant argues that this Motion was prematurely filed because there is no present dispute requiring judicial intervention.

Defendant requests a protective order pursuant to Code of Civil Procedure section 2025.420 to require that the depositions be taken remotely. Defendant has repeatedly requested the Employee depositions be taken remotely as many of the Employees work in the Cerritos and would otherwise be required to leave work to travel to Plaintiff's counsel's office in Beverly Hills for deposition. Defense counsel has also provided Plaintiff's counsel with medical notes evidencing some of the Employees' inability to travel. Nevertheless, Plaintiff only allowed for one witness to appear remotely, Ms. Somers, but insisted that the remaining witnesses appear in person. (Doumanian Decl., ¶¶ 11-15, Exh. C.) Defendant notes that Plaintiff's deposition was conducted remotely. (Doumanian Decl., ¶ 15.)

In reply, Plaintiff argues that, after this Motion was filed, Defendant failed to produce the witnesses even after agreeing upon dates of June 10 and 17, 2026. (Khorshidi Decl., ¶¶ 2-7, Exhs. A-F.) A few days prior to the depositions, Defendant indicated that the deposition could not proceed due to 1) Defense counsel's unavailability and 2) Defense counsel's claim that she was not aware that the depositions were to take place in person. (Ibid.) Plaintiff notes that Ms. Somer's deposition went forward remotely but had to be ended early due to technical difficulties. (Khorshidi Decl., ¶ 10, Exh. I.)

On July 20, 2026, the parties

participated in an Informal Discovery Conference (IDC), in which the parties were ordered to meet and confer regarding agreeable dates for the depositions at issue. However, Plaintiff believes that a Court order is necessary to ensure that the deposition go forward even if dates are agreed upon. (Khorshidi Decl., ¶ 13.) No depositions have been completed as of the date the reply was filed. (Khorshidi Decl., ¶ 14.)

Further, Plaintiff argues that Defendant's request for a protective order should be denied. Defendant has not filed a notice motion for such relief. Plaintiff asserts that the medical notes provided by Defense counsel as to Colvin, Garcia, and Somers did not explain why any medical condition would prevent them from appearing in person with proper notice. (Khorshidi Decl., ¶¶ 7-8, Exhs. F, G.)

The Court finds that the parties not do not dispute that Plaintiff is entitled to take the depositions of Defendant's PMK and Employees. Rather, the parties have been unable to schedule the depositions on mutually agreeable date for almost three years. On February 19, 2026, the Court granted Plaintiff's Ex Parte Application to Continue Trial to November 2, 2026 due to these outstanding depositions. (See 2/19/26.)

Firstly, the Court notes that it is not improper to unilaterally pick a deposition date or require that a deposition be taken in person. Here, Plaintiff elected to take the depositions in person on certain dates, and there is no law requiring Plaintiff to take remote depositions.

"The deposition of a natural person, whether or not a party to the action, shall be taken at a location that is, at the option of the noticing party, either within 75 miles of the deponent's residence or within the county where the action is pending and within 150 miles of the deponent's residence." (Code Civ. Proc., § 2025.250, subd. (a), emphasis added.)

"The service of a deposition notice under Section 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying." (Code Civ. Proc., § 2025.280, subd. (a).)

The Court acknowledges the parties' efforts to schedule mutually agreeable dates for the depositions. However, the bottom line is that Defendant has not produced its PMK and Employees for their depositions for almost three years. Defendant has not filed a formally noticed motion for protective order pursuant to Code of Civil Procedure section 2025.420 to request that the depositions be taken at a different time or in a different place (i.e., remotely) in order to protect the deponents from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. (See Code Civ. Proc., § 2025.420, subd. (b).) The Court finds that Defendant's attempt to request a protective order in the opposition is inappropriate.

Based on the foregoing, Plaintiff's Motion to Compel the Defendant ABC Unified School District and its Employees to Appear for and Produce Documents at Time of Deposition is granted. Defendant's PMK and Employees are ordered to appear for their depositions and produce the requested documents. The parties shall meet and confer to determine the date, time, and location of the depositions, which shall take place no later than 30 days from the date of the Court's issuance of this order. The dates may be extended by agreement of the parties.

Sanctions

"If a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2025.450, (g)(1).)

Plaintiff requests \$13,907.30 in sanctions consisting of non-appearance fees, attorney's fees and costs associated with preparing this Motion, and \$1,000.00 in sanctions pursuant to Code of Procedure section 2023.050, subdivision (a)(1).

In opposition, Defendant argues that sanctions are not warranted where Defendant never refused to produce any witness and continuously engaged in meet and confer efforts. Defendant requests

\$3,450.00 in sanctions against Plaintiff.

The Court finds fault on both parties in failing to schedule mutually agreeable dates for almost three years. Counsel's conduct fails to comport with principles of professional courtesy and civility in participating in timely discovery.

However, under the circumstances, the Court finds that Plaintiff is entitled to reduced sanctions in relation to Defendant's delay in producing the witnesses and failure to file a protective order. Thus, Plaintiff is awarded \$5,000.00 in sanctions, payable within 60 days.